

Bahar Miyan v. State of U.P. and 4 Others

Allahabad High Court · Division Bench · 6 July 2022 · Writ - C No. 1872 of 2022 · **Writ petition disposed of without opinion on merits; petitioner may file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, respondent no.5 to decide after hearing within four further weeks; no coercive action for eight weeks or till disposal of the objection, whichever is earlier**

HEADNOTE

Where a consumer seeks to quash a demand notice and a recovery certificate on the ground that no provisional or final assessment under Section 126 of the Electricity Act, 2003 was served, and the licensee's counsel states that an objection to the demand may be filed and will be decided in accordance with law within a time-bound period, the writ court will not decide the demand on merits. The writ is disposed of giving liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if that objection is filed, respondent no.5 shall decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action is to be taken on the impugned demand or notice for eight weeks or till disposal of the objection, whichever is earlier. The Court did not decide whether Section 126 notices had been served, or the quantum of the demand.

FACTUAL SUMMARY

Bahar Miyan filed Writ-C No. 1872 of 2022 in the Allahabad High Court against the State of Uttar Pradesh and four others, seeking to quash a demand notice dated 27 May 2021 for Rs. 98,504 and a recovery certificate dated 6 July 2021 issued by respondent no.5, the Executive Engineer, and to stay recovery on those instruments. His grievance, recorded at the first listing, was that the demand had been created without service of any notice of a provisional or final assessment as required under Section 126 of the Electricity Act, 2003, and that the proceeding therefore breached natural justice.

On 10 February 2022 the Court granted the licensee a week to file a counter affidavit giving details and proof of service of those assessments. Listings of 25 February 2022 and 31 May 2022 found none present for the petitioner. At the final hearing on 6 July 2022, counsel for the Executive Engineer stated that the petitioner may file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Writ against a demand notice and recovery certificate disposed of by relegating the consumer to a Para 6.8 objection, with a time-bound hearing and a limited stay of coercive action; merits not decided

QUESTION

Where a consumer challenges a demand notice and recovery certificate as issued without service of a Section 126 provisional or final assessment, will the writ court quash them or relegate the consumer to a Para 6.8 objection?

HOLDING

The writ is not decided on merits. Counsel for respondent no.5/Executive Engineer stated that the petitioner may file an objection against the impugned demand, to be decided in accordance with law within a time-bound period. Without expressing any opinion on merits, the Court disposed of the writ giving liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no.5 within four weeks, with a certified copy of the order. If that objection is submitted in time, respondent no.5 shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. For eight weeks or till disposal of the objection, whichever is earlier, no coercive action shall be taken in pursuance of the impugned demand/notice. ¶ 3-5

QUALIFIER

The Court cited Para 6.8 generally, not a numbered sub-clause, and did not decide whether Section 126 notices had been served or the amount of the demand.

FLAG Source PDF concatenates listings of 10.2.2022 (Surya Prakash Kesarwani and Jayant Banerji, JJ.: week for counter with proof of service of provisional and final assessment; put up 17.2.2022), 25.2.2022 (Dr. Kaushal Jayendra Thaker and Ajai Tyagi, JJ.: none present; list 4.5.2022), and 31.5.2022 (disposing bench: none for the petitioner; put up 6.7.2022; rejoinder may be filed) with this 6.7.2022 disposal (numbered paras 1–5). Coram is the disposing bench. Respondent no.5 is the Executive Engineer. Petitioner invoked Section 126 non-service on 10.2.2022; the disposal keys the remedy to Para 6.8 without construing Section 126 or deciding whether the demand was unauthorised use or theft.

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against the 27.05.2021 demand and 06.07.2021 recovery certificate was disposed of without opinion on merits, with liberty to file an objection under Para 6.8 of the 2005 Code before the Executive Engineer. ¶ 3-4

assessment-6.8-alternate-remedy Challenge to the demand of Rs. 98,504 was left to a Para 6.8 objection, to be decided in accordance with law after hearing within four weeks of filing. ¶ 3-4

fresh-objection-under-clause-6.8 The petitioner was given four weeks from 06.07.2022 to submit a fresh objection under Para 6.8, with a certified copy of the order, before respondent no.5. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the Para 6.8 objection is filed in time, it is to be decided after hearing within the next four weeks. No coercive action on the impugned demand/notice for eight weeks or till that disposal, whichever is earlier. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NOTICES OF A PROVISIONAL ASSESSMENT OR A FINAL ASSESSMENT UNDER SECTION 126 OF THE ELECTRICITY ACT, 2003 WERE ISSUED AND SERVED ON THE PETITIONER

That was the grievance recorded on 10.2.2022, when the Court called for a counter with proof of service. The 6.7.2022 disposal did not find on service and expressed no opinion on merits. ¶ 3-4

NOT DECIDED — VALIDITY AND QUANTUM OF THE DEMAND NOTICE DATED 27.05.2021 FOR RS. 98,504 AND OF THE RECOVERY CERTIFICATE DATED 6.7.2021

Left to the Para 6.8 objection before respondent no.5. The demand and recovery certificate were not quashed or upheld. ¶ 2-5

NOT DECIDED — WHETHER THE PROCEEDING WAS IN BREACH OF PRINCIPLES OF NATURAL JUSTICE, AND WHETHER THE DEMAND WAS UNAUTHORISED USE UNDER CLAUSE 6.8 OR A SECTION 126 ASSESSMENT OF ANOTHER CHARACTER

Natural-justice breach was the petitioner's submission on 10.2.2022. The disposal cited Para 6.8 without construing Section 126 or classifying the demand. ¶ 3-4